



Alteration Application – Cover Sheet and Acknowledgement

Re: Apartment ____

Dear Shareholder,

Thank you for your interest in making alterations to your apartment. Before you begin, please take a moment to read through this cover sheet – the alteration process involves several steps and several document reviews, and understanding the process upfront will help your project move as smoothly as possible.

How the process works:

Alteration applications are reviewed by the Board of Directors and the building's Designated Engineer. Once your application is complete and the Board has approved it, the Managing Agent will countersign the Alteration Agreement – that is your authorization to proceed. For projects requiring a New York City Department of Buildings permit or filing, the countersigned agreement will be issued once the required permit or filing is in place. From complete submission to final authorization can take up to 90 days, and may take longer if the Engineer requests revisions or additional information or if DOB processing times apply. Responding promptly to any requests will help keep your project on schedule.

What's in this package:

- **Standard Alteration Agreement** – the core agreement governing your renovation
- **Addendum A** – Technical requirements that apply to all alterations
- **Addendum B** – Project Summary, including project narrative, scope, and schedule
- **Addendum C** – Contractor Information
- **Addendum D** – Contractor Insurance requirements
- **Addendum E** – Contractor Indemnity Agreement
- **Addendum F** – Neighbor Notification Letter (to be sent to apartments above, below, and on both sides)

What to submit with your application:

- All completed addenda listed above
- Certificate of Insurance from your general contractor naming 433 West 34th Street Owners Corp., its Officers & Directors, and Orsid Realty Corp. d/b/a Orsid New York as additional insureds (\$1M bodily injury and property damage, \$5M umbrella, statutory workers' comp)
- Copies of plumber and/or electrician licenses, if applicable
- Security deposit equal to the greater of \$2,000 or 10% of projected project cost, payable to 433 West 34th Street Owners Corp.



433 WEST 34th ST. OWNERS CORP.

COVER SHEET AND ACKNOWLEDGEMENT

- Completed W-9 form

Please note: No work may begin until you have received a countersigned alteration agreement from the Managing Agent. Contractors who arrive at the building without being pre-approved and registered in BuildingLink will be turned away.

Questions? Contact the Managing Agent's Alteration Coordinator at Orsid New York.

Is your project a Decoration Project?

Not all apartment work requires a full alteration application. Decoration Projects – work that does not involve major construction – follow a simpler process and require only a refundable security deposit of \$1,000. If your project falls into this category, contact the Managing Agent for the Simple Form for Apartment Alterations instead of completing this package.

Examples of Decoration Projects include:

- Painting and plastering
- Floor refinishing
- Carpeting
- Replacement of appliances in kind and at the same location
- Replacement of toilets, lavatories, and sinks at existing locations without disturbing finishes (must be performed by a licensed plumber)
- Replacement of electrical devices (outlets and switches) at existing locations with no change in wiring (must be performed by a licensed electrician)

Please note that all materials and products used in Decoration Projects must meet the same standards as full alteration projects.

If you are unsure whether your project qualifies as a Decoration Project, contact the Managing Agent before submitting.

APPLICANT ACKNOWLEDGEMENT

By signing below, I confirm that I have read and understood the alteration application process, including the requirements set forth in this package. I understand that no work may begin until I have received a countersigned alteration agreement from the Managing Agent, and I agree to be bound by the terms of the Standard Alteration Agreement and all applicable addenda.

I designate the following individual as the sole point of contact for communications from the Managing Agent and Reviewing Engineer:

Name: _____ Email: _____



433 WEST 34th ST. OWNERS CORP.
COVER SHEET AND ACKNOWLEDGEMENT

Shareholder Signature

Print Shareholder Name(s)

Date



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

STANDARD ALTERATION AGREEMENT

THIS AGREEMENT, made as of this ____ day of _____, _____ between 433 West 34th Street Owners Corp. (the "Corporation") with an address c/o Orsid Realty Corp. d/b/a Orsid New York 156 West 56th St. New York, NY 10019 and _____ (the "Shareholder") having a mailing address of _____.

WITNESSETH:

WHEREAS, the Shareholder desires to install equipment and/or make alterations in apartment (_____) (the "Apartment") at 433 West 34th Street, New York, New York (the building and the premises shall be referred to as "Building");

WHEREAS, the proprietary lease (the "Lease") between the Shareholder and the Corporation provides that no equipment shall be installed and no alterations shall be made in the Apartment without the consent of the Corporation; and

WHEREAS, the Shareholder desires to obtain such consent;

NOW, THEREFORE, the parties agree as follows:

1) Shareholder's Submissions.

Together with a signed copy of this Standard Alteration Agreement (the "Agreement"), Shareholder is delivering to the Corporation:

- a. A check in an amount equal to the greater of (i) \$2,000.00 or (ii) 10% of the projected cost of the work, payable to 433 West 34th Street Owners Corp. for the security deposit required to be posted by the Shareholder as provided for in Section 15 of this Agreement.
- b. Evidence of Shareholder's current liability insurance policy.
- c. Addendums A, B, C, D, and E (together with the Agreement, the "Alteration Application Documents").

433 WEST 34th ST. OWNERS CORP.**STANDARD ALTERATION AGREEMENT****2) Review of Plans, Drawings and Specifications.**

The plans, drawings and specifications submitted by the Shareholder shall be subject to review and approval by the Corporation and its architect or engineer (the "Corporation's Designated Engineer"), and the Shareholder shall make such changes to such plans, drawings and specifications as the Corporation or the Corporation's Designated Engineer shall require in order to obtain such approval. The term "Plans" as used in this Agreement shall refer to the plans, drawings and specifications as approved in writing by the Corporation and the Corporation's Designated Engineer. The Plans are attached hereto as part of Addendum B and incorporated herein and made a part of this Agreement and the term "Work" shall refer to the work called for by the Plans or any other work performed by or on behalf of the Shareholder. After approval by the Corporation and the Corporation's Designated Engineer, the Plans shall not be modified without the approval of the Corporation and the Corporation's Designated Engineer. Notwithstanding any approval of the Plans by the Corporation or the Corporation's Designated Engineer, the Shareholder shall be solely responsible for the Plans, for ensuring compatibility with the systems and facilities of the Building, and for compliance with applicable laws and codes.

3) Pre-Conditions to Commencement of Work by Shareholder.

The Shareholder shall not commence the Work unless and until all of the following has occurred:

- a. The Corporation and the Corporation's Designated Engineer shall have approved in writing the plans, drawings and specifications submitted by the Shareholder, and the Shareholder shall have received notification of such approval(s) in writing.
- b. The Shareholder shall, to the extent required by applicable law or as determined by the Corporation's Designated Engineer, obtain all required permits, approvals, licenses, and consents from all governmental agencies having jurisdiction over the Work — including but not limited to the New York City Department of Buildings, the New York City Fire Department, and the Landmarks Preservation Commission — prior to commencement of the Work. Such permits and approvals shall be obtained after Board approval of the alteration application and before any Work begins, and copies shall be furnished to the Corporation promptly upon issuance. The Shareholder's application for Board approval may describe anticipated permit types (e.g., Limited Alteration Application, Alt-1, Alt-2) without requiring permits to be in hand at the time of application. The determination of the Corporation's Designated Engineer as to the need for any filing, permit, approval, license, or consent shall be conclusive.
- c. In addition to providing to the Corporation a copy of Shareholder's current liability insurance policy, the Shareholder shall have caused each of its contractors to furnish to the Corporation the insurance policies described on Addendum D attached hereto and incorporated herein and made a part of this Agreement, or in the sole discretion of the Corporation, the certificates thereof. All policies, including the Shareholder's liability policy, shall
 - i. name the Corporation, the Corporation's officers, directors and shareholders, the shareholder(s) below and adjacent to the Shareholder's Apartment, the Corporation's Designated Engineer, Orsid Realty Corp. d/b/a Orsid New York ("the Managing Agent") and the Shareholder, as parties insured,



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

- ii. be issued by companies reasonably acceptable to the Corporation; and
 - iii. provide that they may not be modified, cancelled, or terminated without at least ten (10) days prior written notice to the Corporation. The Shareholder shall cause all such insurance policies to be kept in full force and effect until the completion of the Work.
- d. Shareholder shall furnish Corporation with a letter from a licensed engineer, architect or other licensed professional acceptable to Corporation certifying that:
 - i. the electrical loads required as a result of the alterations will not be in excess of the present electrical capacity of the Apartment or the electrical supply thereto;
 - ii. the alterations will not interfere or overload existing Building systems such as, but not limited to, heating and plumbing systems, or c) adversely affect the Building structure.
- e. Shareholder shall provide Corporation with a complete and conformed copy of every agreement made with contractors and suppliers immediately after same are made.
- f. Shareholder shall provide Corporation with a satisfactory pre-construction survey with respect to conditions in adjoining common areas and apartments above, below and adjacent to the Work, to the extent same may be affected by the Work.
- g. Shareholder shall provide Corporation with evidence of EPA Lead certification of its contractors and/or workers in accordance with Local Law 1 of 2004.
- h. To the extent required by Local Law 196 of 2017 (as amended) and applicable New York City Department of Buildings rules and regulations, all contractors, subcontractors, and workers performing the Work shall hold current Site Safety Training (SST) cards of the level required for the applicable scope of work. The Shareholder shall be responsible for ensuring compliance with this requirement and shall provide evidence of SST card compliance for all applicable workers to the Managing Agent upon request.
- i. The Corporation, in its sole discretion, may modify requirements concerning the level or type of insurance required for contractors.

4) Shareholder to Give Notice Prior to Commencement of Work.

Prior to commencing the Work, the Shareholder shall give at least three business (3) days' prior written notice to the Corporation's Designated Engineer, the residents of the apartments above, below and adjacent to Shareholder, the superintendent of the building (the "Superintendent") and the Managing Agent of the date on which the Work will commence and the estimated duration of the Work and by such writing Shareholder is indemnifying them for any damage whatsoever. Copies of each letter will be delivered to the Managing Agent before the commencement of the Work.

5) Performance of the Work.

- a. **In General.** The Shareholder shall perform the Work strictly in accordance with the Plans and shall not perform any Work not called for by the Plans. Work shall be performed only by Contractors pre-approved by the Corporation or the Managing Agent. In performing the Work, the Shareholder shall comply with (i) all applicable laws and codes; (ii) the



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

requirements of all insurance policies covering the Work, the Apartment or the Building; (iii) this Agreement; (iv) the Lease; (v) the House Rules; (vi) the requirements of the Corporation; and (vii) any directions given by the Managing Agent, the Corporation's Designated Engineer or the Superintendent. The proposed alterations, structural changes and materials used shall be of the quality and style keeping with the general character of the Building as determined by the Corporation, the Corporation's Designated Engineer, or the Managing Agent, and the Work will be carried out by Shareholder and Shareholder's representatives in a proper, expeditious and workmanlike manner. The Work shall conform to rules and regulations of the governmental authorities having jurisdiction as well as New York Board of Fire Underwriters. The Work shall be performed in compliance with any and all rules and regulations as may be promulgated by the Corporation's Board of Directors ("Board"), Managing Agent or Superintendent from time to time. Shareholder shall contact the Superintendent to coordinate access to the Building for Shareholder's contractor(s).

Building Capital Riser Replacement. The Corporation has an ongoing capital program for the replacement of building risers and central waste, drain, and vent (WDV) lines. During the course of any alteration involving plumbing work, the Corporation may, at its sole discretion, elect to replace the relevant risers and central WDV lines serving the Apartment concurrently with the Shareholder's Work. Any such riser replacement work shall be performed at the Corporation's cost. If the Corporation elects to perform concurrent riser work, the Shareholder's contractor shall coordinate with the Corporation's contractor on sequencing, including scheduling riser work to occur following demolition and prior to the Shareholder's branch line tie-in. Where asbestos is present on existing risers, the Shareholder's contractor shall coordinate abatement sequencing with the Corporation's contractor. The Shareholder's branch lines shall tie into the new risers upon completion of the Corporation's riser work. The Corporation's election to perform concurrent riser work shall not entitle the Shareholder to any reduction or relief from the Shareholder's obligations under this Agreement.

- b. **Work Hours and Noise.** The Shareholder shall perform the Work diligently and in a manner so as not to disturb other residents of the Building. Shareholder shall immediately discontinue any work in progress upon receiving notice from the Managing Agent or an appropriately designated Building employee that the Work is, at that time, creating a disturbance to any other occupants in the Building. The use of power tools, such as electric hammers and pneumatic hammers or drills, and similar tools is prohibited unless expressly authorized by the Corporation. The Work shall be performed only on Mondays through Fridays (excluding holidays) between the hours of 9 a.m. and 4:30 p.m., and all workers must leave the Building by 5:00 p.m. The Corporation shall be the sole arbiter should there be any doubt as to noise levels which may be disturbing.
- c. **Labor Harmony.** The Shareholder shall cause its contractors and subcontractors to employ only such laborers as shall not conflict with any of the trade unions employed in the Building or otherwise cause disharmony with any Building service union. The Corporation shall be the sole arbiter concerning labor harmony.
- d. **Completion Date.** The Shareholder shall cause the Work (other than decorative work such as painting, wallpapering and carpeting) to be completed on or before the date indicated in Addendum B, Project Summary (the "Anticipated Completion Date"). Under no circumstance may the Apartment be left unfinished in an unsafe condition or in a condition that might adversely affect Building systems, a neighboring apartment, or that creates a nuisance to

433 WEST 34th ST. OWNERS CORP.**STANDARD ALTERATION AGREEMENT**

the Building's residents. If the Work will not be completed by the Anticipated Completion Date, the Shareholder shall notify the Managing Agent in writing no later than two (2) weeks prior to that date, providing a revised estimated completion date and the reason for the delay. The Corporation reserves the right, in its sole discretion, to assess a fee for unreasonable delays in completion where the delay is attributable to the Shareholder or Shareholder's contractors. The determination of whether the Work is completed shall be made by the Corporation, and the Corporation's determination shall be conclusive. Extensions to the Anticipated Completion Date shall be requested in writing and are subject to approval by the Corporation at its sole discretion. **Evidence of Completion.** Upon completion of the Work, the Shareholder shall obtain and deliver to the Corporation

- i. a certificate from the architect or engineer who prepared the Plans certifying that the Work has been completed in accordance with all applicable laws and codes and the Plans, and
 - ii. all required final governmental signoffs and approvals, including if the Corporation shall require, an amended certificate of occupancy and a certificate from the Board of Fire Underwriters. The determination of the Corporation as to the need for an amended certificate of occupancy shall be conclusive.
- e. **Liens.** Upon the completion of and Shareholder's payment for the Work or any part thereof, Shareholder shall procure from its contractor and sub-contractors, at Shareholder's sole cost and expense, and submit to Corporation for its approval, the contractor's written agreement waiving the right to file any mechanic's liens, attachments or encumbrances against the Building which may arise out of or in connection with the Work. Proof that the contractor has obtained similar waivers from all subcontractors shall be submitted to the Corporation. Shareholder shall cause all Work to cease upon written notice from Corporation or its Managing Agent that contractor has not provided lien waivers as provided for herein. If one or more mechanic's liens are filed in connection with the Work, Shareholder shall cause such lien or liens to be discharged within ten (10) days of the filing thereof. If Shareholder fails to so discharge any mechanic's lien, the Corporation shall be entitled to exercise any and all rights and remedies it may have under the Lease and/or applicable law. Shareholder agrees to indemnify the Corporation and hold it, its directors and officers, the Building, and the Managing Agent harmless from and against any and all claims, costs, liabilities, damages, losses, causes of action, judgments and/or expenses of any nature whatsoever (including without limitation, reasonable attorney's fees and disbursements) which either the Managing Agent or the Corporation may incur by reason of the filing of a mechanic's lien.

6) Inspection and Correction of the Work.

The Corporation shall have the right from time to time to inspect or observe the Work, and for this purpose the Shareholder shall provide access to the Apartment to Corporation's Designated Engineer, the Managing Agent, the Superintendent, or any other person the Corporation may authorize. The Shareholder at its sole cost and expense shall promptly make all corrections required by the Corporation in order to conform to applicable laws, the Plans, and the other requirements of this Agreement. If the Corporation so requires, such corrections shall include the removal and replacement of non-conforming Work. The Corporation may require that all Work cease if it determines Shareholder or its contractors, workmen, or agents are not in compliance with this Agreement. The Corporation's failure to inspect shall not be considered a

433 WEST 34th ST. OWNERS CORP.**STANDARD ALTERATION AGREEMENT**

waiver of the Shareholder's obligation to comply with this Agreement or of Corporation's rights and remedies. If Shareholder fails to promptly correct any Work rejected by the Corporation as violating any laws, defective, or failing to conform to the Plans, Shareholder shall provide the Corporation, the Managing Agent, building employees and other Corporation representatives with unrestricted access to, and ingress and egress through, the Apartment or any portion thereof in order to make repairs, alterations, additions and improvements in and to the Building as may be deemed necessary or advisable by the Corporation. Any increase in the cost of such repair, alteration, addition or improvement resulting from the Work shall be borne by Shareholder and paid to the Corporation on demand. If, in connection with any such repair, restoration, addition or improvement, any portion of the Apartment shall be damaged, the Corporation shall not be liable therefore unless same is occasioned by reason of Corporation's or Corporation's agents' or employees' gross negligence. Nothing herein shall limit or waive any of Corporation's rights, remedies and privileges as set forth in the Lease or By-Laws or elsewhere.

7) Damage or Adverse Effect Caused by the Work.

The Shareholder shall be responsible for any damage to or any other adverse effect upon the Apartment or the Building (including the structure, shell, systems, equipment, fixtures and finishes of the Building or any other apartment or its contents) caused by or resulting from the Work, regardless of when such damage or adverse effect becomes apparent. If any such damage or adverse effect shall occur or arise, the Corporation may:

- i. require the Shareholder, at its expense, promptly to repair the damage or remedy the condition giving rise to such adverse effect and/or
 - ii. (ii) repair such damage or remedy such condition at the Shareholder's expense.
- a. Without limiting the generality of the foregoing, the Shareholder specifically acknowledges that this Section 7 shall be applicable to any damage to the floors, carpeting, wall coverings or other finishes in the Building's hallways, elevators and other common areas (including without limitation, the cost of cleaning, shampooing, painting or repairing the same if soiled or otherwise damaged).
 - b. If the Managing Agent advises the Shareholder of any damage which, in the Managing Agent's opinion, was caused by the Work, the Shareholder shall promptly submit a claim to the Shareholder's insurance carrier and to Shareholder's contractor for submission to its insurance carrier, and the Shareholder agrees to use all reasonable efforts, and to cause the contractor to use all reasonable efforts, to cause such insurance carriers to expeditiously review and settle all such claims for which they are responsible. The provisions of this paragraph shall not limit the Shareholder's liability under this Section 7 or any other section.

8) Indemnification by Shareholder.

In addition to the indemnities otherwise provided herein, and to the maximum extent permitted by law, the Shareholder shall indemnify and hold harmless the Corporation, the Corporation's officers, directors and shareholders, the Corporation's Designated Engineer, the Managing Agent and the other residents of the Building (the "Indemnified Persons") against any loss, cost, claim, damage (including damage to persons or property) or expense arising out of or related to the



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

Work or any act or omission of the Shareholder or any of its contractors, subcontractors, architects, engineers or consultants, including reasonable attorney's fees and disbursements incurred by any of the Indemnified Persons in the defense of any such claim or any suit, action or proceeding based thereon. However, notwithstanding anything to the contrary herein, the Shareholder's obligations pursuant to this paragraph shall be limited by the application of the provisions of the New York State General Obligations Law, as are now in effect and may be amended from time to time.

9) Shareholder to Bear All Costs Associated with Work.

The Shareholder shall be responsible for all costs incurred by the Shareholder or the Corporation in connection with the Work or this Agreement, including the fees and disbursements of any attorney, architect, engineer or consultant retained by the Corporation in connection with the Work or this Agreement. Without limiting the generality of the foregoing, the Shareholder specifically agrees to reimburse the Corporation for all charges of the Corporation's Designated Engineer for the review of the plans, drawings and specifications submitted by the Shareholder, for inspection of the Work or otherwise related to the Work or this Agreement, whether or not the Plans are approved or the Work is completed.

10) Additional Requirements.

- a. **Use of Public and Common Areas During Work.** The Shareholder shall not allow the halls, sidewalks, courtyards and other public areas to be used for the storage of building materials or debris. The Shareholder shall cause its contractor to cover with construction paper the floor of any hall to be used in connection with the Work and shall also cause its contractor to take all precautions necessary to prevent damage to the floor, carpeting, wall coverings or other finishes in the Building's hallways, elevators and other common areas. Prior to the commencement of any Work, the Shareholder or Shareholder's contractor shall conduct a joint walkthrough with the Superintendent of all common areas to be used in connection with the Work. Photographic documentation of pre-construction conditions shall be taken during this walkthrough and submitted to the Managing Agent for retention. The Shareholder's obligation to document pre-construction conditions exists regardless of whether the Superintendent conducts an independent inspection. Upon completion of the Work, the Shareholder and Superintendent shall conduct a joint post-construction walkthrough of all affected common areas. The Shareholder shall be responsible for restoring all common area finishes (including flooring, wall coverings, elevator cab finishes, and lobby surfaces) affected by the Work to their pre-construction condition within ten (10) days of completion of the Work, at the Shareholder's sole cost and expense.
- b. **Shareholder to Control Refuse, Dirt, Dust.** Shareholder shall take all precautions to prevent dirt and dust from permeating other parts of the Building during the progress of the Work, and shall place all materials and rubbish in sealed barrels or double bags before removing the same from the Apartment. All such barrels and bags and all rubbish, rubble, discarded equipment, empty packing cartons and other materials shall be removed from the Apartment and taken out of the Building at Shareholder's expense. Shareholder must obtain elevator protection pads and Masonite and properly protect the elevator prior to the removal of any refuse through the elevator. Shareholder recognizes that only the service elevator may



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

be used for such removal and only at such times as the Superintendent may direct. Shareholder shall not permit any dumpster or garbage container to be left overnight in front of the Building. Notwithstanding the foregoing, the placement of any dumpsters shall comply with all governmental regulations, including without limitation, obtaining any necessary permits. Shareholder shall ensure that entrance door is covered with zipper access plastic and provide a foot guard for wiping feet before entering the hallways.

- c. **Shareholder Responsible for Additional Labor Costs.** Shareholder agrees to bear all costs to the extent that any regular or added Building personnel are required to render services as a result of the Work, the expense of such time, including any wages, overtime pay and additional payroll taxes and benefits that result therefrom.
- d. **Safety.** During the Work, one light in the Apartment will be left on for 24 hours each day to assist anyone who might be responding to an emergency. Shareholder will ensure that the contractor maintains no less than two, fully charged, 20lb ABC fire extinguishers, a complete first aid kit, active smoke detectors and toilet facilities in the Apartment.
- e. **BuildingLink Registration and Daily Log.** Upon approval of the alteration application, the Managing Agent will register approved contractors in the Corporation's BuildingLink system. The Shareholder shall not permit any contractor, subcontractor, or worker to enter the Building for any purpose related to the Work until such individual has been confirmed as registered by the Managing Agent or Superintendent. Prior to entering the Building each day, all contractors, subcontractors, and workers engaged in the Work will be required to sign the BuildingLink daily log maintained by the Building's maintenance staff. The Shareholder shall notify the Managing Agent promptly of any changes to the contractor or subcontractor roster so that BuildingLink records may be updated.
- f. **Access Key.** Shareholder will provide to the Superintendent an access key to the Apartment. House Rules require an access key be left at the front desk in the key storage box at all times.
- g. **Right of Entry During Active Work.** The Superintendent, building maintenance staff, and the Corporation's Designated Engineer shall have the right to enter the Apartment at any time during which contractors, subcontractors, or workers are present and engaged in the Work, without prior notice to the Shareholder, for the purpose of inspecting the progress and condition of the Work and verifying compliance with this Agreement and Addendum A. This right of entry is limited to active work periods and does not expand the Corporation's general right of access to the Apartment outside of those periods, which remains governed by the Proprietary Lease.
- h. **Quality and Style.** The quality and style of all work shall be in keeping with the general character of the Building.
- i. **Smart Locks and IoT Devices.** The apartment entry (hallway) door is owned by the Corporation pursuant to the Proprietary Lease. Any modification to the apartment entry door or its hardware, including the installation of any smart lock, electronic lock, keypad, or access control device, constitutes an alteration requiring prior written approval of the Board of Directors. No modification to the entry door hardware shall be made without approval, and any approved smart lock installation must retain a physical key override fully compatible with the building's master key system. Self-contained IoT devices installed entirely within the



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

interior of the Apartment and not connected to or interfacing with any building system or common infrastructure (including but not limited to undersink leak detection sensors, motion sensors, and smart thermostats that replace existing thermostats in kind) are permitted without Board approval, provided that any smart thermostat must be compatible with the building's heating system and may not override building-wide heating controls. Any IoT device that connects to or communicates with building electrical, HVAC, plumbing, intercom, or network infrastructure requires prior written approval of the Corporation.

11) Lead-Based Paint.

Without limiting the applicability to other buildings, the Federal Task Force on Lead-Based Paint Hazard Reduction has recommended and Local Law 1 of 2004 of the City of New York requires in all buildings erected prior to January 1, 1960 certain maintenance practices, including:

- i. limiting access to the work area to only workers,
- ii. isolating the work area with polyethylene plastic or equivalent,
- iii. protecting the workers,
- iv. protecting the Shareholder's belongings by covering or removing them from the work area,
- v. wetting the painted surfaces before disturbing the paint and
- vi. wetting the debris before sweeping.

The Task Force has indicated that certain removal practices are unsafe, including

- i. open flame burning
- ii. power sanding or sandblasting (unless a special vacuum attachment is used to contain dust), and
- iii. dry scraping more than a de minimis surface area (de minimis means an area of less than one square foot per room).

The Shareholder shall cause the Shareholder's contractors and/or workers to perform the Work consistently with the recommendations of the Task Force and Local Law 1 of 2004, as amended and other applicable laws relating to the removal of lead-based paint, and shall upon completion of the Work perform specialized cleaning of the work area using methods designed to safely remove dust and debris which may contain lead. No more than sixty (60) days prior to beginning renovation activities in the Apartment, the Shareholder shall cause its contractor to provide to the Shareholder and any other occupant of the Apartment with the Environmental Protection Agency (the "EPA") pamphlet entitled, Protecting Your Family from Lead in the Home, (the "Pamphlet"), and the Shareholder shall furnish the Contractor with a written acknowledgement of receipt. The Shareholder hereby acknowledges that the Corporation has no liability or obligation in connection with this notification requirement of the EPA. Shareholder shall obtain clearance dust tests by a third party and maintain all records of the Work for a period of ten (10) years from completion of the Work and will provide copies of such records to the Corporation, the Managing Agent and Shareholder's successor-in-interest to the Apartment as required by Local Law 1 of 2004. Without limiting Shareholder's obligations under Local Law 1 of 2004, Shareholder's contractors will take all precautions to prevent dirt and dust and limit smells from permeating other parts of the Building during the progress of the Work.

433 WEST 34th ST. OWNERS CORP.**STANDARD ALTERATION AGREEMENT**

- i. Shareholder shall strictly comply in a timely fashion with all federal, state and local statutes, laws, rules, regulations and ordinances pertaining to lead control and removal, as the same have been or may hereafter be promulgated, supplemented or amended from time to time prior to and during the Work. In addition, Shareholder agrees to indemnify the Corporation and hold the Corporation harmless from and against any and all damages, losses, claims, liabilities, fines, penalties, costs and expenses (including, without limitation, attorneys' fees and disbursements) arising out or in connection with (a) any failure by Shareholder or any consultant or contractor retained by Shareholder to fully conform to all the foregoing or (b) in the defense of any suit, action, claim, or violation in connection with the lead abatement work or removal.
- ii. Any reference herein to Local Law 1 of 2004 shall include any amendment thereto and any successor or replacement law dealing with lead paint in the City of New York.

12) Asbestos.

If the Work involves the demolition, removal, relocation, or alteration of any walls, ceilings, floors, or electrical, plumbing, heating, or ventilation systems, Shareholder hereby agrees to do the following at Shareholder's sole cost and expense prior to the commencement of the Work:

- a. Retain an asbestos investigator selected from a list of approved investigators supplied by the Managing Agent to either:
 - i. Review the building's construction and renovation records as well as any prior inspection reports to determine the existence and possible disturbance of any asbestos containing material ("ACM"); or
 - ii. Inspect the areas to be renovated to determine the existence and possible disturbance of any ACM.
- b. If the results of the review or investigation reveal the presence of ACM in a friable condition but said friable ACM is less than 10 square feet or 25 linear feet, Shareholder will present the Managing Agent proof of the investigator's filing of Form ACP5 ("Not an Asbestos Project"). If the results reveal that more than 10 square feet or 25 linear feet of ACM is in a friable condition, Shareholder will present the Managing Agent proof of the investigator's filing of Form ACP7 (Asbestos Inspection Report).
- c. If, in Corporation's sole judgment, no abatement work is required, Shareholder will be entitled to commence and perform the Work, subject to all of the terms, covenants and conditions of this Agreement.
- d. If abatement work is required, Shareholder will:
 - i. submit names and qualifications of asbestos consultants and contractors to the Managing Agent;
 - ii. upon receipt of approval, retain such consultants and contractors to encapsulate, enclose, treat or otherwise abate all friable ACM in strict conformance with all applicable statutes, laws, rules, regulations and ordinances;
 - iii. furnish the Managing Agent with copies of all required reports and tests; and

433 WEST 34th ST. OWNERS CORP.**STANDARD ALTERATION AGREEMENT**

- iv. cause the ACM hauler to furnish the Managing Agent with lists of all dump locations and EPA certification of dump sites.
- e. Shareholder shall strictly comply with all federal, state and local statutes, laws, rules, regulations and ordinances pertaining to asbestos control and agrees to indemnify the Corporation and hold the Corporation harmless from and against any and all damages, losses, claims, liabilities, fines, penalties, costs and expenses arising in connection with any failure to comply.

13) Mold and Moisture.

If the Work involves opening any wall, floor, or ceiling cavity in a bathroom, kitchen, laundry area, or any area adjacent to a plumbing riser or exterior wall, the Shareholder shall promptly notify the Superintendent and Managing Agent in writing upon discovery of any visible mold, moisture damage, or evidence of prior leaks or water intrusion. Work shall not proceed in the affected area until the Corporation has had an opportunity to inspect and determine whether remediation by the Corporation is required. If no written response is received from the Corporation or Managing Agent within three (3) business days of the Shareholder's written notice, the Shareholder may proceed. The Shareholder remains solely responsible for any mold or moisture damage caused by or attributable to the Work.

14) Shareholder to Comply with Laws, etc.

The Shareholder shall not do or permit any act or thing to be done contrary to law, or which will invalidate or be in conflict with any provision of any liability, casualty or other insurance policies carried by Shareholder or for Shareholder's benefit. The Shareholder shall comply with all federal, state and local laws, rules and regulations pertaining to the Work, including any such laws, rules and regulations pertaining to lead-based paint, asbestos and other hazardous materials.

15) Maintenance and Repair of the Work.

Notwithstanding anything to the contrary contained in the Lease, the Shareholder shall be responsible for the maintenance, repair and replacement of the Work and any portions of the Apartment affected by the Work, and for all costs incurred by the Corporation or the Shareholder in connection therewith. Furthermore, the Shareholder releases the Corporation, the Managing Agent, the Corporation's agents and employees from any liability for damage to the Work or any portion of the Apartment affected by the Work however arising.

Removal of the Work. In the event that, at any time during or following the completion of the Work, the Corporation or its agents or contractors shall require access to, through, under or beyond any area altered by the Work, the Shareholder shall, promptly upon request, remove such portions of the altered area as shall be necessary so as to provide the needed access. All costs incurred in connection with any removal and, if applicable, any reinstallation or replacement of such portion(s) removed, shall be borne solely by the Shareholder, and neither the Corporation nor the Managing Agent shall have any liability or obligation therefor.



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

16) Shareholder's Security Deposit; Additional Rent Under Lease.

As security for the faithful performance and observance by Shareholder of the terms and conditions of this Agreement, the Shareholder has deposited the sum indicated in Section 1(a) with the Corporation. The security deposit shall be held in full by the Corporation throughout the duration of the Work and shall not be reduced or released until (i) the Work has been completed to the satisfaction of the Corporation and (ii) all required permits, approvals, and governmental sign-offs relating to the Work have been obtained and copies furnished to the Corporation. Upon satisfactory completion of the Work, the Corporation shall be entitled to apply the security deposit against any outstanding costs, damages, fees, or other sums owed by the Shareholder to the Corporation under this Agreement, and any remaining balance shall be returned to the Shareholder. The Corporation's release of the security deposit shall not constitute acceptance of the Work or a waiver of any of the Corporation's rights under this Agreement. Any sums due to the Corporation under this Agreement not recovered by application of the security deposit shall be chargeable as additional rent under the Lease. Shareholder shall be required to complete a current W-9 form for the interest-bearing account.

17) Assumption by Purchaser.

The Shareholder shall use best efforts to advise any person to whom the Apartment is transferred of the existence of this Agreement and to provide such person with a copy of the Agreement and the approved Plans. The Corporation makes no representation as to whether any obligations under this Agreement will be binding on a subsequent owner, and the transfer of the Apartment shall not release the Shareholder from any obligations that arose during the Shareholder's ownership.

18) Assumption of Responsibility.

Without limiting any other obligations of Shareholder in this Agreement or otherwise, if Shareholder alters the air conditioning, plumbing, heating or ventilation systems serving the Apartment, Shareholder shall assume all responsibility for said alteration and neither the Corporation, nor the Managing Agent will be responsible for failure of the efficient performance of the Apartment heating, cooling, plumbing or ventilation systems as altered by Shareholder. Shareholder understands that the alteration by Shareholder may void certain guarantees and warranties which currently exist which are applicable to Shareholder.

Shareholder's assumption of responsibility covers:

- i. all Work, whether or not structural, weather tightness of windows, exterior walls, roofs, flooring and waterproofing of every part of the Building directly or indirectly affected by the Work; and
- ii. maintenance of all heating, plumbing, air conditioning and other equipment installed, altered or in any way affected pursuant hereto both in the Apartment and in the Building. Neither the Corporation nor the Managing Agent will be responsible for failure of performance of Building services or systems to the Apartment as a result of the Work.



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

19) Miscellaneous.

- a. This Agreement and the Lease represent the only agreements between the Corporation and the Shareholder relative to the subject matter hereto. This Agreement may not be changed orally.
- b. This Agreement shall be binding on legal representatives, successors and authorized assigns.
- c. Captions are for the purposes of convenience of reference only and are not to be considered in interpreting this Agreement.
- d. The Corporation and Shareholder waive trial by jury in any action or proceeding under this agreement.
- e. Shareholder releases the Corporation, its directors and officers, and the Managing Agent ("Released Parties") from any and all liability for loss or damage to any of Shareholder's property which may result or be in any way connected with the Work and waive any claim Shareholder may now or hereafter have against the Released Parties based on interruption or suspension unless due to the Released Parties' willful or grossly negligent conduct.
- f. By consenting to the Plans, neither the Corporation nor the Corporation's Designated Engineer make any representation as to the design or efficiency of the proposed alteration, and if the operation of the Building is in any way adversely affected because of said alterations, Shareholder will at Shareholder's expense remove the cause of the problem immediately upon notification by the Corporation or its Managing Agent.
- g. Nothing herein shall limit the rights of the Corporation under the Lease or applicable law or to modify or limit the requirements set forth above.

20) Shareholder's Breach and Corporation's Remedies.

Any breach by the Shareholder of any of the provisions of this Agreement shall constitute a breach of the Lease and shall entitle the Corporation to exercise all of the rights and remedies therein provided. Without limiting any other provisions of this Agreement, any and all costs, fees and expenses incurred by Corporation arising under this Agreement shall be deemed to be additional rent under the Lease. If Shareholder fails to pay or reimburse the Corporation for same within seven (7) days of demand by the Managing Agent or the Corporation, said nonpayment shall be deemed a default by Shareholder under and pursuant to the provisions of the Lease and in addition to any and all remedies the Corporation may have hereunder at law or equity, the Corporation may pursue its remedies as are available to it (under and pursuant to the terms and conditions of the Lease or otherwise) based upon such a default. In addition, the Corporation shall also have the right (i) to suspend the Work and prevent workers from entering the Apartment for any purpose other than to remove their tools, and/or (ii) to revoke its consent to the Work, and/or (iii) to exercise any of the rights and remedies provided for herein.

21) Notice.

Any Notice pursuant to the terms hereof shall be deemed duly given if in writing and sent by registered, or certified mail, return receipt requested, or by overnight mail delivery and a copy sent by regular mail, addressed to Shareholder at the Building or to the Corporation, in care of



433 WEST 34th ST. OWNERS CORP.

STANDARD ALTERATION AGREEMENT

the Managing Agent Orsid Realty Corp. d/b/a Orsid New York, 156 West 56th St New York, NY 10019. Notice shall be deemed given on the date mailed. Notwithstanding the foregoing, notices transmitted by email to the Managing Agent's then-current designated alteration email address shall be deemed effective notice for routine operational matters, including but not limited to work commencement dates, contractor roster changes, and plumbing shutdown requests. Email notice shall not substitute for written notice sent by registered or certified mail or overnight carrier in connection with defaults, lien claims, security deposit demands, or any other matter for which formal notice is expressly required by this Agreement or the Lease.

IN WITNESS WHEREOF, Shareholder and the Corporation have executed this Agreement.

Shareholder Signature

Print Shareholder Name(s)

Date

Management Signature

By: Orsid Realty Corp. d/b/a/ Orsid New York

Date



ADDENDUM A: TYPICAL REQUIREMENTS

The following are the typical requirements that apply to conventional alteration projects; however, these requirements may be changed from time to time by the Corporation, and there will be specific comments by Corporation's Designated Engineer addressed to the particular project. These requirements are provided to allow Shareholder to understand what Plans submitted under Addendum A are likely to be approved.

1) GENERAL REQUIREMENTS FOR ALL ALTERATIONS

- a. Shareholder to comply with laws, rules, and regulations. The Shareholder shall not do or permit any act or thing to be done contrary to law, or which will invalidate or be in conflict with any provision of any liability, casualty, or other insurance policies carried by Shareholder or for Shareholder's benefit. The Shareholder shall comply with all federal, state, and local laws, rules, and regulations pertaining to the work, including any such laws, rules, and regulations pertaining to lead-based paint, asbestos, and other hazardous material.
- b. No cutting or channeling of the building structural floor slab, either top or bottom, will be allowed.
- c. No cutting or removal of load bearing or structural elements, such as beams, columns, or load bearing walls, will be allowed.
- d. No penetrations into the apartment demising walls or shafts will be allowed (except for piping connections approved by the Board, and except as provided in Section 9 of this Addendum with respect to branch line access through demising walls).
- e. No piercing of the building facade will be allowed, unless specifically approved in writing.
- f. Venting Prohibitions and Exterior Penetration Approval: Venting of any appliance, fixture, or mechanical equipment into shared building shafts, riser chases, pipe chases, or architectural voids is strictly prohibited. Exterior facade penetrations for venting or mechanical purposes are likewise prohibited unless specifically approved in writing by the Board of Directors prior to commencement of work. Such approval is entirely at the Board's discretion, shall not be presumed from prior approvals granted to other shareholders, and is conditioned upon compliance with any technical requirements imposed by the Corporation's Designated Engineer, which may include but are not limited to appropriate flashing, waterproofing, and wind and rain resistance ratings for the penetration and any associated equipment. Notwithstanding any exception the Board may grant for exterior penetrations, clothes dryers must in all cases be of the condensing (ventless) type; no exterior dryer exhaust penetration will be approved under any circumstances.
- g. No jackhammer or other electrical hammer equipment shall be used unless specifically authorized by the Corporation.
- h. All studs should be metal, not wood, except that wood studs may be used to stiffen door opening.
- i. All rough carpentry employing plywood or wood studs shall be fire retardant type.
- j. Blocking or sealing legally required fire exits will not be permitted.

433 WEST 34th ST. OWNERS CORP.**ADDENDUM A**

- k. The Shareholder shall not interfere with the Building's intercom, gas, electric, heating, ventilation, air-conditioning or plumbing system or any other Building system or service.
- l. If consented to by the Corporation, Shareholder shall make all appropriate arrangements with the Managing Agent and the Superintendent at least one week in advance if any of the proposed Work will affect gas, ventilation, plumbing or heating lines when such alteration requires shutting or draining of common risers.
- m. All new and existing plumbing valves and electric junction boxes shall be easily accessible. The Shareholder shall insure that all water, steam, gas and other valves remain accessible to the Managing Agent, Superintendent and Corporation's Architect and/or Engineer during the performance of and after the completion of the Work.
- n. All enclosures of radiators shall be easily removable, or shall have access panels of sufficient size to permit work on shut-off valves, including replacement.
- o. Apartment doors may not be cut.
- p. Where a bathroom or kitchen finished floor is replaced, it shall have a waterproofing membrane below the floor, such as Laticrete 9235 turned up 4" at walls, or equivalent waterproofing membrane with fabric reinforcement. If a bathroom or kitchen floor is to be wood, the Laticrete 9235 may be used at perimeter only, with an epoxy applied over the floor, such as SikaBond T55 or approved equivalent. Moisture barrier is not to be penetrated.
- q. During kitchen or bathroom renovations, if any, Shareholder shall call in the Superintendent and the Managing Agent to inspect the rooms to ascertain that all newly renovated walls and pipes are snugly fitted so that vermin may not gain entrance. Shareholder understands that this work must be done prior to the installation of any cabinets, fixtures or appliances. The Work may not proceed without this inspection and approval by the Superintendent and the Managing Agent. Shareholder shall grant access to the Apartment during the Work to the Building exterminator when he is in the Building.
- r. If enlargement of a kitchen or bathroom is approved, the entire room shall have a layer of soundproofing below the floor to meet noise transmission requirements that will be dependent on the arrangement -- normally STC/IIC ratings of 59, up to 62.
- s. Wet over Dry installations are prohibited.
- t. Bathroom tiling shall not cover or obstruct any required access panel or access point to building plumbing, shutoff valves, or risers.
- u. **Flooring Replacement – Dry Areas.** Where flooring is being removed and replaced (this provision does not apply to refinishing or recoating of existing flooring in place), the following requirements apply:
 - i. A subfloor shall be installed prior to installation of the finish floor. Plywood subfloor is the recommended standard given the building's joist construction; alternative subfloor materials may be used only with the prior written approval of the Corporation's Designated Engineer.
 - ii. A soundproofing underlayment of not less than 5mm thickness shall be installed between the subfloor and the finish floor. The underlayment shall be adhered or mechanically fastened – loose-laid underlayment is not permitted under any circumstances. Any reference to "noise reduction matting or acceptable alternative" elsewhere in this Addendum shall be interpreted consistent with this specification.



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

- v. No plaster, grout, paintbrushes, rollers, etc. are to be washed in the apartment tubs or sinks. Use the wet room in the basement.
- w. All material and equipment must be moved or delivered via the service elevator with access through the basement. Arrangements must be made in advance with the Superintendent.

2) PROHIBITED MATERIALS

- a. Lead based paint.
- b. Materials containing asbestos.
- c. Combustible rough framing (plywood and wood studs) used in wall or partition construction, except as otherwise permitted under §1(h) of this Addendum. This prohibition does not apply to plywood subfloor installations, which are governed by §1(u).
- d. Carpet and padding that are not Class A.
- e. Materials with higher VOC content than allowed in New York State or materials with lingering odors.
- f. Suspended ceilings or cabinetry attached to the concrete slab above, unless approved as a part of an alteration project and with approved fasteners.

3) TYPES OF EQUIPMENT ALLOWED

- a. Gas ovens, stoves, and cook tops.
- b. Only energy star rated appliances are permitted.
- c. If electric or convection ovens are proposed, an electric load letter must be submitted to justify electrical capacity.

4) PROHIBITED APPLIANCES, FIXTURES, AND EQUIPMENT

- a. Garbage disposals.
- b. Appliances that are not "Energy Star" rated.
- c. Wall-mounted toilets, unless with written approval of the Board.
- d. Toilets with tanks concealed within walls or pipe chases.
- e. Toilets mounted on offset flanges.
- f. Whirlpool tubs.
- g. Air jet tubs, unless with the written approval of the Corporation.
- h. Saunas.
- i. Steam rooms.
- j. Steam generators.
- k. Humidifiers that supply steam or water into ductwork.
- l. Satellite dish antennas, unless inside the apartment.
- m. Kilns.



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

- n. Thru wall air conditioning units.
- o. Central air conditioning systems.
- p. In-Unit Clothes Washers and Dryers. In-unit clothes washers and dryers are prohibited except that the Board of Directors may, in its sole discretion, consider approval only in connection with a full kitchen renovation or the combination of two or more apartments where a new kitchen is being created. No washer/dryer installation will be considered as a standalone alteration or in any room other than the kitchen. Applications shall be submitted by letter including:
 - i. a photo or sketch showing the proposed location of the appliance;
 - ii. the make and model of appliance proposed;
 - iii. and a non-refundable license fee of \$5,000.00 payable to 433 West 34th Street Owners Corp., which shall be in addition to the standard security deposit and management fee required in connection with the Alteration Application. The license fee will be returned to the Shareholder in the event the application is not approved by the Board.

The standard Alteration Agreement and all applicable insurance requirements apply to washer/dryer installations. Technical requirements for approved installations are set forth in Section 13 of this Addendum.

5) PROJECT TYPES TO BE FILED WITH AUTHORITIES

- a. If the Corporation's Designated Engineer determines during the alteration review that the Work requires filing with any governmental agency, the Shareholder shall, following Board approval and prior to commencement of Work, cause the project's licensed Architect or Engineer to file all required plans, forms, and applications with, and procure all required approvals, permits, licenses, and consents from, all governmental agencies having jurisdiction, including but not limited to the NYC Department of Buildings.
- b. The types of work required to be filed shall include, but not be limited to the following:
 - i. Room partition re-locations;
 - ii. Re-location of kitchen or bathroom fixtures by more than 12";
 - iii. Division of rooms;
 - iv. Suspended ceiling work;
 - v. Abatement of asbestos;
 - vi. Changing a tub to a shower;
 - vii. Permits may be required for all plumbing and electrical work, whether or not DOB filing is required.

6) PROJECT TYPES THAT DO NOT NEED TO BE FILED WITH AUTHORITIES

The following types of work are considered as being an alteration, but are not required to be filed with DOB, unless they are a part of a larger project that requires filing:



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

- a. Replacement of flooring.
- b. Built-in cabinetry, such as radiator or convector enclosures, and bookcases.
- c. Direct replacement of kitchen or bathroom fixtures, so long as no changes in location, or changes to roughing other than replacing branching back to risers.
- d. New or replaced kitchen or bathroom cabinets.
- e. New or replaced moldings and trim.
- f. Minor partition work such as closet changes without change to the room arrangement.

7) SAFETY

The project shall be kept in a safe condition at all times, including but not limited to the following:

- a. Capping off open ends of piping at same time fixtures are removed (by a licensed plumber).
- b. Maintaining exposed electrical lines in safe condition at all times, including temporary supports, and no exposed ends of wire or dangling wires.
- c. Temporary lights at all times, including one 24 hour light left on at all times near the entrance door, except when there are permanent lights in place.
- d. No less than two 20lb "ABC" fire extinguishers shall be kept in the apartment for the duration of the project, whenever heat producing devices or procedures are in use.
- e. Debris shall be removed on a regular basis, at least once each week.
- f. Hallways must be vacuumed and cleaned every day.

8) RE-LOCATIONS/NEW SERVICE

- a. Wherever an apartment bathroom or kitchen is being refurbished, including removal of cabinetry and/or tile finishes, the plumbing branch lines shall be replaced back to the riser with accessible shut-off valves installed. This requirement may be waived by the Board if it is determined that the piping was previously replaced. Access panels are required.
- b. If your renovation involves work on the bathroom or kitchen, you will be required, at your own expense, to expose and replace branch lines and shut-off valves, and if replacing a shower or bathtub, you must replace all plumbing waste traps during the course of work, also at your own expense.
- c. If the Board approves re-locations of plumbing fixtures, the Shareholder shall be solely responsible to repair any structural damage found in the floor when opened.
- d. All new water piping shall be insulated with ½" thick closed cell foam insulation.
- e. If the alteration includes an increase in the electrical load for the apartment, an electrical load letter for the entire apartment shall be submitted meeting the requirements of the National Electric Code, prepared by a licensed electrician, licensed engineer, including capacity of the existing service.
- f. If the Corporation's Designated Engineer determines that increased service would be required, the design shall be modified so as to eliminate such increase, unless specifically approved by the Board in writing.



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

- g. When an increase in electric service is approved there shall be a charge assigned by the Board in anticipation of the eventual upgrade in the building electrical service when there is no remaining additional capacity.
- h. No electric riser or intercom riser shall be re-located.
- i. Whenever a new electrical panel is installed, it shall be circuit breaker type with a main circuit breaker.
- j. When an electrical panel is re-located, the original panel shall remain in place as a junction box with an access panel.

9) PLUMBING

The plumbing service to each resident shall comply with all of the following specifications:

- a. All plumbing work must be performed by a licensed plumber.
- b. All branch piping shall be replaced back to the supply riser, and back to the waste/vent stack. (This provision will be waived if the Board is made aware in writing of the existence of a reason to do this before the alteration is approved.) New accessible shut off valves are required. In addition, all waste and ventilation lines serving any bathroom or kitchen being refurbished shall be replaced back to the building waste/vent stack. This requirement may be waived by the Board in writing if it is demonstrated that the existing waste and vent lines were previously replaced and/or are in satisfactory condition as confirmed by the Corporation's Designated Engineer.
- c. Plumber must check existing waste and vent lines to be free of obstruction.
- d. Approved back flow prevention devices shall be provided on water supplies to hard piped refrigerator ice maker, dishwasher, and clothes washer (if allowed), where there is a risk of syphon action, to the extent required by Code.
- e. Provide new master shut-off valves, quiet type check valves, and branch lines for hot and cold water supply for rehabbed bathrooms and kitchen. All valves must be full port, of US manufacture. All new copper piping from the master shut-off valve to each fixture.
- f. Check valves shall be furnished on branch piping for hot and cold water adjacent to the master shut-off valves. Check valves must be quiet type.
- g. Provide new accessible shut-off valves at each fixture:
 - a. Bathrooms:
 - i. Hot water master shut-off valve;
 - ii. Cold water master shut-off valve;
 - iii. Hot water shut-off valve at lavatory;
 - iv. Cold water shut-off valve at lavatory;
 - v. Shower valve, approved for use (temperature range 110°F to 120°F);
 - vi. Cold water shut-off valve at toilet.
 - b. Kitchen:
 - i. Cold water shut-off valve;
 - ii. Hot water shut-off valve;
 - iii. Vacuum breaker for refrigerator and dishwasher water supply.

433 WEST 34th ST. OWNERS CORP.**ADDENDUM A**

- h. No valves are to be concealed behind finished wall surfaces without an access panel. All shutoff valves installed in connection with the Work, including master shutoff valves and individual fixture shutoff valves, shall either be installed on the surface of the finished wall or, where installation within a wall niche is approved by the Corporation's Designated Engineer, shall be accessible via a permanently installed access panel of sufficient size to permit operation, inspection, and replacement of the valve. Access panels shall be clearly identified. All valves must remain accessible to the Managing Agent, Superintendent, and Corporation's Designated Engineer at all times during and after completion of the Work.
- i. The building is to be notified of any potential damage, leaks, defects, etc. that are observed while performing any and all plumbing work. Any failure to notify the building of said damage will become the responsibility of the resident should this be discovered at a later date.
- j. In all locations that plumbing work is being performed, all hot and cold water supply lines must be insulated appropriately, with minimum ½" thick closed cell foam insulation regardless of existing conditions.
- k. Water hammer arrestors of an approved type must be installed in all fixture/water supply connections.
- l. All valves must be installed during the rough plumbing installation and all attempts must be made to minimize the number of water shut-offs.
- m. Plumbing Shutdown Scheduling. No shutdown of any building riser or building-wide supply line shall be performed except on weekdays. Written requests for shutdowns must be submitted to the Managing Agent and Superintendent no fewer than 48 hours and no more than 72 hours prior to the requested shutdown. Requests shall specify the riser(s) affected, the estimated duration, and the licensed plumber responsible. The Managing Agent reserves the right to reschedule a shutdown if building conditions require it.
- n. Wet Area Waterproofing. Tub/shower walls shall have a layer of cementitious board as a substrate. A waterproofing membrane (Laticrete 9235 or approved equivalent) shall be applied over the cementitious board behind all shower tiling and shower surrounds, with all seams lapped a minimum of 4 inches. In addition to the floor waterproofing requirements set forth in §1(p) of this Addendum, this requirement applies to all shower and tub/shower enclosures regardless of whether the scope of work is limited to tile replacement or involves full demolition of the enclosure.
- o. Shower bases are to be fitted to a new lead pan coated with polymer material both sides to prevent electrolytic and chemical reaction.
- p. The toilet flange must be set on top of the height of the finished floor and secured properly. No offset flanges will be permitted.
- q. Provide a riser diagram for waste and supply piping wherever there is a fixture re-location or change in type (i.e. tub to a shower).
- r. Demising Wall Access for Plumbing Work. Notwithstanding the general prohibition on penetrations into apartment demising walls set forth in §1(d) of this Addendum, work within demising walls is permitted to the extent strictly necessary to fulfill the branch line replacement requirements of this Section 9, including in cases where two or more apartments share a common riser stack accessible only through a demising wall. Any such demising wall work shall be performed by a licensed plumber, shall be limited to the



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

minimum scope necessary to complete the required plumbing work, and shall require prior written approval of the Corporation's Designated Engineer.

10) GAS PIPING WORK

- a. When the gas piping is extended from the gas shut-off by more than approximately 3'-0", the gas "whip" will not be sufficient length to remove the appliance. If piping is extended so that this distance is exceeded, the building may allow gas line re-locations for benefit of quality of life, depending on the particular circumstances. If the Board allows the gas extension, it must be legally done, including filing with NYC DOB and notification to Con Edison. A proper DOB permit should be obtained for gas piping changes. No self-certifications by plumber. Inspection must be by DOB.
- b. The following notes shall be placed on the drawings:
 - i. All gas piping work shall meet the requirements of the NYC Building Code;
 - ii. The existing and new gas shut-offs shall be accessible;
 - iii. Plumbing work shall be filed indicating a gas piping extension;
 - iv. No gas piping shall be located in the floor without a specific permit.
- c. Con Edison shall be notified of the work.
- d. It is a specific requirement that the completed gas piping shall be tested by Contractor and inspected and signed off by DOB. Self-certification by plumber shall not be allowed.
- e. Prior to commencing any work, the licensed plumber shall pressure test the gas supply back to the same point required by NYC DOB. If the loss in pressure exceeds Code limits, no gas piping work may be done until repairs are made at the Shareholder's expense.
- f. Pressure test shall be at 3psig after a new valve and tee immediately adjacent to the gas shut-off. Shut-off valve shall be tested with soap film.
- g. IMPORTANT NOTE: IF THERE IS NO EXISTING GAS SHUT-OFF VALVE IN THE APARTMENT, NO GAS PIPING CHANGES WILL BE ALLOWED.

11) ELECTRICAL

- a. All electrical work must be performed by a licensed electrician.
- b. Total amperage for the apartment must be verified with the Superintendent to avoid overloading the main fuse.
- c. Duplex outlets within 6'-0" of sinks are to be GFCI type.
- d. No electrical upgrades will be allowed without written approval of the Corporation.
- e. No upgrade to the apartment's electrical service capacity and no installation of any dedicated circuit of 50 amperes or greater shall be permitted without the prior written approval of both the Board of Directors and the Corporation's Designated Engineer. An electrical load letter for the entire apartment prepared by a licensed electrician or engineer shall be submitted in connection with any such request, demonstrating that the proposed upgrade does not exceed the available capacity of the building's electrical infrastructure serving the Apartment.

433 WEST 34th ST. OWNERS CORP.**ADDENDUM A****12) STRUCTURAL**

- a. The work may only proceed in strict compliance with drawings submitted to the Corporation and filed and approved by NYC Department of Buildings.
- b. It shall be the Apartment Owner's responsibility to assure that the Registered Architect or Professional Engineer named for Controlled Inspection as required by Code has the appropriate qualifications.
- c. The Architect or Engineer responsible for Controlled Inspection shall personally supervise all aspects of the structural work and structural stability.
- d. The Contractor shall take all steps necessary in shoring the work temporarily until all permanent work is in place.
- e. If a new floor opening is allowed for a duplex apartment stairs, the slab to be removed shall be shored before any cutting work is done so that pieces can be removed from above as they are cut out.
- f. Any new structural framing shall be set in place and permanently welded to the existing supporting beams before the slab opening is cut.
- g. Specific attention shall be given to prevent dust from leaving the apartment by sealing all doors and assuring that no adjacent apartment windows are left open.
- h. Extra protection shall be provided in corridors in the course of removing debris.
- i. The professional of record alone must agree to be responsible for the structural work.

13) WASHER/DRYER INSTALLATION REQUIREMENTS

Where a washer/dryer installation has been approved by the Board pursuant to §4(q) of this Addendum, the following technical requirements apply:

- a. **Appliance Type.** Only Energy Star rated front-loading clothes washers and condensing (ventless) dryers are permitted. No vented dryer exhaust shall be permitted under any circumstances, including through exterior walls, windows, building shafts, riser chases, pipe chases, or architectural voids. The Board retains the right to designate preferred manufacturers, which may be updated from time to time.
- b. **Location.** The appliance shall be located as close as practicable to, and connected to, the kitchen waste stack. Connection to a bathroom waste stack may be permitted at the Board's sole discretion in the case of combined apartments or where connection to the kitchen waste stack is demonstrated to be a hardship.
- c. **Water Containment.** The clothes washer shall be fitted in a stainless steel pan with a minimum 2-inch curb on all sides, with a layer of mat soundproofing below the pan and neoprene pads below the support points of both washer and dryer. The pan shall be equipped with an overflow sensor with an audible alarm, wired to solenoid valves (such as Watts Intelliflow or approved equivalent) that automatically shut off both the hot and cold water supplies upon detection of overflow. Water supply hoses shall be arranged so that in the event of leakage, water flows into the pan.
- d. **Supply Piping.** Washing machine flexible water supply hoses shall be braided stainless steel/neoprene "no-burst" type. Black rubber hoses are prohibited. Shut-off valves and water



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

hammer arrestors shall be provided on both hot and cold water supply piping. All clothes washers shall have backflow prevention devices on the water supply piping.

- e. Drain. Washing machine drains shall flow into an open hub 2-inch standpipe with hub elevation not less than 6 inches above the flood level of the machine.
- f. Installation. Installation must be performed by a licensed plumber (plumbing connections) and a licensed electrician (electrical connections). If changes to non-bearing walls are involved, a full alteration application must be submitted.
- g. Noise and Vibration. In the event the installation is determined by the Managing Agent or Superintendent to cause noise or vibration problems to other residents, use of the appliance must be discontinued immediately and not resumed until appropriate repairs or replacements are made to the satisfaction of the Corporation.
- h. For-Cause Removal. Approval of a washer/dryer installation does not create a perpetual right of use. The Board may order the Shareholder to remove the appliance if:
 - i. the appliance causes noise or vibration problems that cannot be remediated to the Corporation's satisfaction;
 - ii. the appliance causes or contributes to building system problems that cannot be corrected;
 - iii. the Corporation determines that the relevant waste stack no longer has sufficient capacity; or
 - iv. the Shareholder fails to maintain the appliance and its connections in good working order.
- i. Transfer of Apartment. The Board may, in its sole discretion, require removal of the appliance as a condition of the Corporation's consent to the transfer of the Apartment. If the Board does not require removal, the Shareholder shall cause any future proprietary lessee of the Apartment to assume all obligations of the Shareholder with respect to the appliance by executing an instrument acceptable to the Corporation, as a condition of the Corporation's consent to the transfer.
- j. Building System Problems. In the event problems develop in building systems on any riser line due to washer/dryer appliances, the Board may, at its sole discretion, revoke approval for one or more apartments on that line and require removal of the affected appliance(s).

Shareholder Signature

Print Shareholder Name(s)

Date



433 WEST 34th ST. OWNERS CORP.

ADDENDUM A

Management Signature

By: Orsid Realty Corp. d/b/a/ Orsid New York

Date



ADDENDUM B: PROJECT SUMMARY

PLEASE PROVIDE THE FOLLOWING:

Apartment: _____ Shareholder(s): _____

1. Narrative Description of the proposed project:

2. Anticipated DOB Filing / Permit Type (e.g., Limited Alteration Application, Alt-1, Alt-2, none required, etc.): _____
3. Planned Commencement Date: _____
4. Anticipated Completion Date: _____
5. Time periods for the specific phases of Work:

6. Detailed plans, drawings and specifications for the equipment proposed to be installed and/or the alterations proposed to be made (attach separately).



433 WEST 34th ST. OWNERS CORP.

ADDENDUM C

ADDENDUM C: CONTRACTOR INFORMATION

Apartment: _____ **Shareholder(s):** _____

PLEASE PROVIDE THE FOLLOWING:

1. Schedule of all contractors, subcontractors and suppliers who will perform or provide materials for the Work including respective emergency contact information
2. Copy of Licenses and Certifications for all Contractors, Electricians and Plumbers
3. Copies of all agreements entered into with such contractors and subcontractors

Note: Upon approval of the alteration application, the Managing Agent will register approved contractors in the Corporation's BuildingLink system. The Shareholder is responsible for notifying the Managing Agent of any changes to contractors or personnel.



ADDENDUM D: CONTRACTOR INSURANCE

Each of Shareholder's contractors shall provide insurance of the types and in not less than the limits set forth below with a company or companies satisfactory to the Corporation, licensed to do business in the State of New York, and all such policies shall name the Corporation, the Corporation's officers, directors and shareholders, the shareholder(s) below Shareholder's apartment, the Corporation's Designated Engineer and the Managing Agent as additional named insureds. No diminution of limits of insurance will be permitted.

(i) WORKER'S COMPENSATION as required by law together with Employer's Liability Insurance and Disability Benefits Insurance as required by the State of New York.

(ii) COMMERCIAL GENERAL LIABILITY including Contractor's Liability and Blanket Contractual Liability (oral or written), all on an occurrence basis with Personal Injury Coverage. \$1,000,000 BODILY INJURY & PROPERTY DAMAGE (combined single limit).

(iii) COMPREHENSIVE AUTOMOBILE LIABILITY, including non-ownership and hired car coverage, as well as owned vehicles: \$1,000,000 BODILY INJURY & PROPERTY DAMAGE (combined single limit).

(iv) UMBRELLA LIABILITY, BODILY INJURY, PERSONAL INJURY AND PROPERTY DAMAGE: \$5,000,000 COMBINED (combined single limit).

*Amounts of insurance required may be higher for major renovations as designated and determined by the Board of Directors.

Prior to the commencement of any Work hereunder, detailed certificates of insurance including the actual policies and all endorsements shall be furnished to the Corporation showing that such insurance is in full force and the premiums due thereunder have been paid. Such certificates shall provide that the said insurance may not be canceled, terminated or modified without ten (10) days written advance notice thereof to the Corporation.

It is a specific requirement that each prime contractor used by an Apartment Owner is properly insured, and work of each Prime Contractor will be considered a separate alteration. When the Prime Contractor has sub-contractors, the Prime Contractor shall provide evidence in acceptable form that his insurance covers the work of all sub-contractors, as well as employees and agents.



433 WEST 34th ST. OWNERS CORP.

ADDENDUM E

ADDENDUM E: CONTRACTOR INDEMNITY AGREEMENT

Whereas _____, having offices at _____, as "Indemnitor", is and will be performing certain work at the premises 433 W 34th Street, New York, N.Y. 10001 Apt. _____ (the "Property") pursuant to agreement between _____ and _____ Shareholder. The Property's owner, 433 W 34th Owners Corp. and its Managing Agent, Orsid Realty Corp. d/b/a Orsid New York, (each individually and collectively an "Indemnitee") and Indemnitor hereby agree that the following provisions shall be incorporated by reference into each such agreement:

INDEMNIFICATION AGREEMENT

To the fullest extent permitted by law, Indemnitor agrees to indemnify, defend and hold harmless Indemnitee from any and all claims, suits, damages, liabilities, professional fees, including attorneys' fees, costs, court costs, expenses and disbursements related to death, personal injuries or property damage (including loss of use thereof) arising out of or in connection with the performance of the work of the Indemnitor, its agents, servants, subcontractors or employees, or the use by Indemnitor, its agents, servants, subcontractors or employees, of facilities owned or leased by the Indemnitee.

INSURANCE PROCUREMENT

Indemnitor shall obtain and maintain at all times during the term of this agreement, at its sole cost and expense, the following insurance:

- a. workers compensation insurance with statutory limits and employer's liability coverage of not less than \$500,000;
- b. commercial general liability insurance with a minimum limit of \$1,000,000 per occurrence and \$2,000,000 in the aggregate;
- c. \$1,000,000 automobile liability including non-ownership and hired car coverage, as well as owned vehicles;
- d. \$5,000,000 combined Umbrella Liability limit.

Contractor/subcontractor as Indemnitor:

Print Name: _____

Dated: _____



433 WEST 34th ST. OWNERS CORP.

ADDENDUM E

433 W 34th Owners Corp. and Orsid Realty Corp. d/b/a Orsid New York (as Indemnatee):

Print Name: _____

Dated: _____



433 WEST 34th ST. OWNERS CORP.

ADDENDUM F

LETTER TO NEIGHBORS – NOTIFICATION OF ALTERATION

To: Resident of Apartment _____ 433 West 34th Street, New York, NY 10001

Re: Alteration of Apartment _____

Dear Neighbor:

Pursuant to the Rules of the building, we hereby notify you that on _____, we will commence renovation of our apartment in the building.

We will instruct our contractors to exercise care to minimize the noise during construction. It would be impossible to eliminate all the noise completely and we hope you will understand and bear with us during this period.

We expect that the renovation will be completed within _____ calendar days.

In addition, pursuant to the Rules, we are required to notify you that we will indemnify you for any damages you sustain as a result of the renovation. For this purpose we request that you allow the superintendent or our designated representative to inspect your apartment prior to commencement of work.

Please contact us to schedule an inspection.

Very truly yours,

Shareholder(s): _____

Home: _____ Email: _____

Date: _____

cc: The Managing Agent's Designated Alteration Coordinator

Orsid Realty Corp. d/b/a Orsid New York 156 West 56th Street, 6th Floor New York, New York
10019